



CHAPTER 1.

An Act to extend the time for the construction of works authorised by the Port of London Act 1917 to confer further powers on the Port of London Authority and for other purposes. A.D. 1926.
[15th July 1926.]

WHEREAS by the Port of London Act 1908 the Port of London Authority (hereinafter called "the Port Authority") were established for the purpose of administering preserving and improving the Port of London and for other purposes in the said Act set forth and by such Act the undertakings and powers of the London and India Docks Company the Surrey Commercial Dock Company and the Millwall Dock Company were transferred to and vested in the Port Authority and other powers were conferred upon the Port Authority :

And whereas by the Port of London Act 1917 the Port Authority were authorised to construct dock and other works in the metropolitan boroughs of Stepney and Poplar :

And whereas by the Port of London (Consolidation) Act 1920 the provisions of the various statutes by which or by reference to which the constitution powers rights authorities privileges duties and obligations of the Port Authority were then defined were unified consolidated and amended as in that Act appearing :

And whereas it is expedient that the time limited by the said Act of 1917 for the construction by the Port

A.D. 1926. — Authority of the works authorised by that Act should be extended :

And whereas it is expedient that the Port Authority should be empowered to make byelaws with respect to vessels loading petroleum and that further powers be conferred on the Port Authority as by this Act provided and that such other provision should be made as is contained in this Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title
and con-
struction.

1. This Act may be cited as the Port of London Act 1926 and the Port of London (Consolidation) Act 1920 the Port of London (Dock Charges) Act 1923 the Port of London (Finance) Act 1923 the Port of London Act 1925 and this Act may be cited together as the Port of London Acts 1920 to 1926.

Definitions.

2. In this Act the several words and expressions to which meanings are assigned by the Port of London (Consolidation) Act 1920 have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

“ The Act of 1917 ” means the Port of London Act 1917 ;

“ The Act of 1920 ” means the Port of London (Consolidation) Act 1920 ;

“ The port ” means the port within the limits prescribed in the First Schedule to the Act of 1920.

Extension
of time for
completion
of works.

3. The time limited by the Act of 1917 for the completion of the works authorised by that Act is hereby extended until the expiration of five years from the passing of this Act.

Amending
section 191
of Act of
1920.

4.—(1) From and after the passing of this Act the Act of 1920 shall be read and construed as if there were substituted for section 191 (Owner of vessel &c. answerable

for damage to docks) of that Act the following provisions (that is to say) :— A.D. 1926.

The owner of every vessel or float of timber shall be answerable to the Port Authority for any damage done by such vessel or float of timber through the misconduct negligence or default of the master or other person employed about or in charge of the same to the docks and works or any of them and the master or person having or taking the charge of such vessel or float of timber through whose misconduct negligence or default any such damage is done shall also be liable to make good the same and the Port Authority may detain any such vessel or float of timber until sufficient security has been given for the amount of damage done by the same.

(2) The said section 191 of the Act of 1920 is hereby repealed.

5. For the purpose of enabling the Port Authority to register any craft worked or navigated in the port and which is not employed in conveying goods the provisions and regulations contained in sections 347 to 349 inclusive section 350 (except condition (1) thereof which prohibits craft being worked or navigated within the port unless a certificate as therein mentioned relating to such craft is in force) section 354 sections 356 to 361 inclusive and sections 363 to 371 inclusive of the Act of 1920 and any byelaws made by the Port Authority under the said Act and any other provisions thereof relating to the registration or measurement or identification of craft and their owners shall extend and apply as if such craft were craft employed in conveying goods and the Port Authority shall on the application of the owner of any such craft but subject to such provisions regulations and byelaws register such craft accordingly.

Registratio
of craft not
carrying
goods.

6.—(1) Section 4 of the Petroleum Act 1871 shall in its application to the port be read and construed as if the byelaws as to ships carrying petroleum required to be made and confirmed under that section included byelaws as to the loading of ships with petroleum spirit and generally as to the precautions to be observed with respect to ships carrying petroleum spirit whilst in harbour.

Byelaws as
to ships
carrying
petroleum.

A.D. 1926.
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(2) The provisions of sections 449 to 452 inclusive of the Act of 1920 shall extend and apply to any such byelaws as are mentioned in this section as if they were byelaws referred to in the said sections of the Act of 1920.

(3) If any public general Act be passed in the present session of Parliament to amend the law with respect to petroleum any provisions of that Act relating to byelaws as to the loading of ships with petroleum spirit and generally as to the precautions to be observed with respect to ships carrying petroleum spirit whilst in harbour shall be deemed to supersede any provisions of this section relating to such matters.

Costs of
Act.

7. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act shall be defrayed by the Port Authority out of the port fund.

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